

Ram Das v. State of U.P. & Others

High Court of Judicature at Allahabad · Division Bench · 5 January 2011 · Writ-C No. 67538 of 2010 · **Writ disposed of; recovery not quashed; 4.44 application left open.**

HEADNOTE

Division Bench refused to quash recovery of tubewell electricity arrears against a petitioner using a connection still recorded in the name of his deceased father and others. Non-transfer of the connection was no ground to stall the citation. The petitioner was left free to apply for transfer under clause 4.44 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ram Das challenged a recovery citation dated 10 August 2010 for Rs 1,45,232 issued after the Executive Engineer sent a recovery certificate to the Collector for unpaid dues on a tubewell connection. The connection stood in the name of his father and other persons, all deceased, and had not been transferred to him. He did not deny that he was using the connection. After several adjournments and an interim stay of coercive steps, the Division Bench heard the writ on 5 January 2011.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.44

transfer of connection; recovery of arrears

HOLDING

The Court found no ground to quash recovery of Rs 1,45,232 on a tubewell connection used by the petitioner though still recorded in the name of his deceased father and others. It left it open to the petitioner to apply for transfer of the connection in his name under clause 4.44 of the U.P. Electricity Supply Code, 2005, and disposed of the writ. ¶ 1